

Benefits during transition from child to adulthood

When a young person reaches 18, they can claim benefits in their own right, in certain circumstances.

However, young people are expected to remain in education until the September following their 18th birthday and their parents or guardian can claim benefit for them if eligible. This can often be the better option financially. Young people can remain in education and Child Benefit can be paid to age 20. A young person will be removed from their parents Universal Credit claim from the September following their 19th Birthday.

If a young person is to claim benefit in their own right and are able to handle their own finances, they will need to deal with all correspondence relating to their benefits and manage any contact with the DWP themselves.

Disability Benefits

Disability Living Allowance is being replaced by Personal Independence Payment. Therefore, if a young person is receiving Disability Living Allowance, they will be sent an invitation to claim benefit from age 16. The transfer to Personal Independence Payment is not automatic, and a claim must be made by calling the new claims number once the invitation is received.

A new claim form must be completed, and a new medical assessment will take place to determine what level of award can be given on Personal Independence Payment, as the criteria is different to that of Disability Living Allowance.

The level of award given can be challenged if it is felt to be an unfair decision or an inaccurate level of award.

See the [Personal Independence Payment](#) and/or the [Challenging a Benefits Decision](#) factsheet for more information.

Universal Credit

A young person may be able to apply for Universal Credit if they are claiming benefit in their own right, because they have either left education or because their parents' benefit has ended from the September following their 19th birthday or they have turned age 20.

If the young person remains in education, has Personal Independence Payment, and has Limited Capability for Work prior to starting the course of education, they can claim Universal Credit in their own right as a disabled student. They should claim for New Style Employment and Support Allowance and complete the Limited Capability for Work questionnaire. They will need a favourable decision on this to make a claim for Universal Credit before their course starts.

It is advisable to seek independent benefit advice so as not to disadvantage themselves and their families. In many cases it is more favourable for parents to receive benefits than for the young person to claim themselves. A better off calculation with a benefits advisor to look at options will help to determine what is best financially.

If there is no entitlement to Child Benefit or to be included in parents benefits, then the only option will be to claim Universal Credit.

Claims to Universal Credit are made online and maintained online through a journal. Universal Credit is means tested and is paid

monthly in arrears. It is possible to work and still be paid Universal Credit. Earnings are considered when working out how much Universal Credit you are paid each month.

See our [Universal Credit](#) factsheet for more information.

Appointees for benefits

If a young person lacks capacity, then someone can apply to become their appointee for benefits.

The nominated person will complete a form called a BF56 to become the appointee and the DWP will arrange a visit to ensure the appointeeship is necessary and appropriate. Once accepted as appointee they will then be issued with a form BF57 to confirm this, giving them authority to act on the young person's behalf for benefit purposes only.

It is important that young people and their parents/carers seek independent benefit advice when transitioning into adulthood so as not to disadvantage themselves and their families.

If you need further advice, you can contact Nottinghamshire County Council for more information using the details provided below.

Contact information:

Phone: 0300 500 80 80
Monday - Friday, opening times may vary.
Calls are charged at local rate.

Email: enquiries@nottscc.gov.uk
Website: www.nottinghamshire.gov.uk

Phone 0300 500 80 80 if you need the information in a different language or format.

The Council is committed to protecting your privacy and ensuring all personal information is kept confidential and safe. For more details see our general and service specific privacy notices at: <https://www.nottinghamshire.gov.uk/global-content/privacy>